

OREGON STATE HOSPITAL

POLICY

SECTION 5: Human Resources **POLICY: 5.008**

SUBJECT: Equal Opportunity Employment
of Non-Discrimination

POINT PERSON: Chief Financial Officer/Chief
Operations Officer

APPROVED: Sara Walker, MD  **DATE: OCTOBER 15, 2024**
Interim Superintendent

SELECT ONE: ☐ New policy ☐ Minor/technical revision of
existing policy
☒ Reaffirmation of existing policy ☐ Major revision of existing policy

I. PURPOSE AND APPLICABILITY

- A. This policy describes Oregon State Hospital (OSH) non-discrimination practices, including reporting and investigating requirements for prohibited conduct.
- B. This policy applies to all staff.

II. POLICY

- A. OSH adopts Department of Administrative Services policy 50.010.01, "Discrimination and Harassment Free Workplace."
- B. OSH follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services (DAS), Shared Services, and Oregon Health Authority (OHA) policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.
- C. Staff who fail to comply with this policy or related policy attachments or protocols may be subject to disciplinary action, up to and including dismissal.

III. DEFINITIONS

- A. "Staff" includes employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at Oregon State Hospital (OSH).

IV. RELATED OSH POLICIES AND PROTOCOLS

1.012 Non-Discrimination and Alternate Language Access

5.002 Family Medical Leave

5.007 ADA and Reasonable Accommodation in Employment

5.011 Return to Work of Staff Injured on the Job

V. REFERENCES

29 CFR Part 37

Americans with Disabilities Act of 1990, as amended

Civil Rights Act of 1964, as amended

Department of Administrative Services (2022). *Discrimination and Harassment Free Workplace*, 50.010.01.

Employment Act of 1967

Oregon Revised Statute § 174.100

Oregon Revised Statute § 240.086(1)

Oregon Revised Statute § 240.145(3)

Oregon Revised Statute § 240.250

Oregon Revised Statute § 240.316(4)

Oregon Revised Statute § 240.321

Oregon Revised Statute § 240.555

Oregon Revised Statute § 240.560

Oregon Revised Statute § 243.317-243.323

Oregon Revised Statute § 659A.029

Oregon Revised Statute § 659A.030

Oregon Revised Statute § 659A.082

Oregon Revised Statute § 659A.112

Oregon Revised Statute § 659A.375

Rehabilitation Act of 1973

Title VII